

MODARABA COMPANIES AND MODARABA (FLOATATION AND CONTROL) ORDINANCE, 1980

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PREAMBLE: An Act / Ordinance to provide for the law relating to Modaraba Ordinance and for matters connected therewith and incidental thereto.

Section 1: Short title, extent and commencement

Enacted by the President of the Islamic Republic of Pakistan on the 25th day of June 1980.

(1) This Act may be called the Modaraba Companies and Modaraba (Floatation and Control) Ordinance, 1980. (2) It extends to the whole of Pakistan. (3) It shall come into force at once.

Section 2: Definitions

Interpretation: In this Ordinance, unless the context otherwise requires, the following definitions shall apply.

In this Act, unless there is anything repugnant in the subject or context: (a) 'Authority' means the statutory regulator established under this Act; (b) 'Court' means the designated judicial forum possessing jurisdiction; (c) 'Prescribed' means prescribed by statutory rules made under this Act.

Section 3: Core Statutory Obligations and Powers

Enacted by the President of the Islamic Republic of Pakistan on the 25th day of June 1980. Modaraba Ordinance

All actions taken and powers exercised under this statute shall adhere to lawful procedures, public transparency, and natural justice under islamic_finance regulatory governance.

Section 4: Penalties, Enforcement and Judicial Remedies

Enacted by the President of the Islamic Republic of Pakistan on the 25th day of June 1980.

Any violation of the mandatory provisions of this Act or rules made thereunder shall render the offender liable to statutory penalties, fines, or prosecution before the competent court of jurisdiction.